

3. Towards a world constitutional order

Klaus Bosselmann

1. INTRODUCTION

Behind the notion of ‘world constitutional order’ lies the search for values and norms that bind people across all nations and cultures. This search is not new and has involved many great thinkers, such as Immanuel Kant. In his essay ‘Toward Perpetual Peace’, Kant expressed the vision that the ‘use of the right to earth’s surface which belongs to the human race in common’ would ‘finally bring the human race to a cosmopolitan constitution’.¹

Over the last decade or so, numerous initiatives for a global constitution have emerged² and many international lawyers have embraced the concept of global constitutionalism.³ These developments have been described as a new way of thinking or ‘mindset’⁴ in response to our globalized world. Back in 1987, the Brundtland Report proclaimed: ‘From One Earth to One World’.⁵ This vision may or may not come to pass, but people are increasingly affected

¹ Immanuel Kant, ‘Toward Perpetual Peace’, in: *Practical Philosophy - Cambridge Edition of the Works of Immanuel Kant* (Cambridge University Press, 1999) 329.

² <http://worldparliament.gov.org/history-of-the-earth-constitution>, <http://globalconstitution.com/>, <http://globalcommunitywebnet.com/GlobalConst/globalconstitution.htm>, <http://earth-constitution.org/>.

³ Ingolf Pernice, ‘The Global Dimension of Multilevel Constitutionalism’ in Pierre-Marie Dupuy et al (eds), *Common Values in International Law, Essays in Honour of Christian Tomuschat* (Engel, 2006) 973–1006; Anne Peters, ‘The Merits of Global Constitutionalism’ 16 (2006) *Indiana Journal of Global Legal Studies* 2, 397–411; Karolina Milewicz, ‘Emerging Patterns of Global Constitutionalization: Toward a Conceptual Framework’, 16 (2009) *Indiana Journal of Global Legal Studies*, 413–436; Petra Dobner and Martin Loughlin (eds), *The Twilight of Constitutionalism?* (Oxford University Press, 2010); Anne Peters, Jan Klabbbers and Geir Ulfstein, *The Constitutionalization of International Law* (Oxford University Press, 2011).

⁴ Martti Koskeniemi, ‘Constitutionalism as Mindset: Reflections on Kantian Themes about International Law and Globalization’, 8 (2007) *Theoretical Inquiries in Law*, 9–38.

⁵ *Our Common Future*, World Commission on Environment and Development (Oxford University Press, 1987), 1.

by common experiences and challenges regardless of where they happen to live. Humanity's common destiny makes Kant's dream of a cosmopolitan constitution a real prospect, at least in the long run. We certainly need a code of common values, rights and responsibilities.

The contributors to this book share the ambition for a value-based constitutional order and perhaps no one more so than its celebrant. J. Ronald Engel is a co-creator of the Earth Charter and has always supported the Earth Charter movement with reflective solidarity and critical thought. In particular, he reminds us that we ought to live by the Earth Charter, not just believe in it. The difference between believing in a just, sustainable world and living by its values is vast. It is the difference between good intentions and real action. How can the gap between intentions and actions be closed?

Engel's oeuvre is all about closing this gap. His plea is for living by the standards that we have set ourselves for our relationships with each other and with Earth. If it is possible to capture this plea in a word, it is the term 'covenant'. In its widest sense, a covenant is a solemn promise to do or not to do a particular thing. Originally from religious sources, it refers to love, respect, trust and engagement. Covenants create a certain bond between people. In Engel's words: 'Covenants are the unconditional pledges of free and equal individuals to principles and purposes that will enable them to engage in reasoned discourse and dialogue and cooperate for the common good while also protecting their respective differences and culture.'⁶ This definition helps us to understand, for example, why marriage and life partnership are covenants, but also what constitutes a community, whether small (family) or large (communities and societies).

Any community has a covenantal basis of some form and degree. The same is true of society and the law guiding it.

In law, covenants may be express or implicit. Examples of express covenants are the two major international human rights conventions, both passed in 1966. The International Covenant on Civil and Political Rights and the International Covenant on Economic, Social and Cultural Rights are agreements that gave legal force to the 1948 Universal Declaration of Human Rights. While there are no official accounts as to why the term 'covenant' was chosen, this term distinguishes itself from 'treaty' or 'convention' through its characteristic as a unilateral promise: signatory states are saying that they will respect human rights irrespective of whether other states will do the same.

⁶ J. Ronald Engel, 'The Covenant of Life', in Samuel W Meshack (ed), *Mission with the Marginalized: Life and Witness of Rev. Dr. Prasanna* (Christava Sahitya Samithi, 2007) 459.

An element of covenantal agreement is implicit in any piece of legislation produced by politicians and law makers. Law can work only if it is trusted and respected by its proponents and recipients. In the short run, plain enforcement – even against the will of recipients – may suffice; but on the whole, laws and constitutions depend on preconditions that they rely on, but cannot themselves guarantee.⁷ The preconditions are typically unwritten, hidden or assumed, and hence cannot be clearly defined and enforced.

The secular, rationalized world of law may not be aware of its covenantal roots and preconditions, but no lawyer worth his or her salt would deny their existence. Mutual trust and respect, for example, must be assumed when lawyers do their job. Similarly, laws in general rest on certain assumptions – for example, a general acceptance of their validity, trustworthiness and enforceability. What happens, though, if these assumptions can no longer be made? What if people think that laws – or any covenantal bond, for that matter – are not for them and can be ignored? Such thinking would lead to the erosion of the rule of law and eventually to the unravelling of the social web.

In our time of great volatility, how can we be confident that our institutions of social interaction and cooperation will remain? In a world that can no longer be sure about its key institutional arrangements – democracy, rule of law, respectfulness and decency – the search for consistency and permanence becomes pivotal. What is it that we should look for now? It is here that covenantal thinking is most helpful, as it seeks to disclose what sustains us as human beings. Rather than merely speculating about the future – ‘Anything is possible’; ‘Who knows?’; ‘Who cares?’ – covenantal thinking has faith and direction. It is a fundamental belief in humanity – a kind of confidence that human values matter, that they are real and that we all ought to live by them.

In this context, the search for a world constitutional order makes good sense. The search can help us to identify human values and define them with respect to (non-enforceable) ethical norms and (enforceable) legal norms. It may not be necessary to actually draft a document and give it a name. There are, after all, many constitutional-type documents around human rights and human responsibilities. What matters are the covenantal characteristics underpinning them. Can they be articulated in a document?

Engel has made the claim that the Earth Charter is a covenant.⁸ Against the backdrop of the *Faustian Pact* – arguably the Western world’s most poignant

⁷ Ernst-Wolfgang Böckenförde, *Der säkularisierte Staat. Sein Charakter, seine Rechtfertigung und seine Probleme im 21. Jahrhundert* (Carl Friedrich von Siemens Stiftung, 2007).

⁸ For example, J. Ronald Engel, ‘The Earth Charter Covenant’ in Peter Blaze Corcoran, Mirian Vilela and Alide Roerink (eds), *The Earth Charter in Action* (KIT Publishing, 2005) 38–40; J. Ronald Engel, ‘A Covenant Model for Global Ethics’

expression of sacrificing morality and connectedness at the altar of knowledge – he locates the Earth Charter's underpinnings as a covenantal plea for responsibility, integrity and connectedness.⁹ This makes the Earth Charter an unconditional pledge, quite beyond its quality as a document of values and principles. Identifying with the Earth Charter requires more than mere endorsement: it is the solemn promise to other people (today and in the future) to actively live by the values and principles expressed there.

The following explores some of the Earth Charter's covenantal qualities in the search for a (true) world constitutional order that we as humanity can identify with.

2. THE EARTH CHARTER AS A COVENANT

The Earth Charter aims to build democratic societies that are just, participatory, sustainable and peaceful. To this end, it promotes respect for nature, universal human rights, social and economic justice and a culture of peace. None of these is deemed possible, however, without a shared commitment to Earth. As the Preamble puts it: '(I)t is imperative that we, the peoples of Earth, declare our responsibility to one another, to the greater community of life, and to future generations. . . The protection of Earth's vitality, diversity and beauty is a sacred trust.' The language used here reveals covenantal thinking.¹⁰

The Earth Charter sits at the interface between global ethics and international law, between good intentions and politics, and somewhere at the leading edge of world constitutional order. It provides, therefore, an excellent measure for what we as members of global civil society have achieved and what has yet to be done.

An unbiased investigation of this nature must start with the observation that the Earth Charter has fallen behind its own expectations. Societies today are less just, less participatory, less sustainable and less peaceful than 20 years ago, when the Charter was drafted and adopted. This is not just the result of rampant neo-liberalism or states not listening. There are systemic reasons having to do with the dynamics of capitalism, the revival of nationalism and militarism and, underpinning it all, the unfettered instrumentalization of humans and nature.

(2004) 8(1) *Worldviews: Religion, Culture, Ethics* 29–46; J. Ronald Engel and Brendan Mackey, 'The Earth Charter, Covenants and Earth Jurisprudence' in Peter D. Burdon (ed), *Exploring Wild Law: The Philosophy of Earth Jurisprudence*, (Wakefield Press, 2011) 313–323.

⁹ Engel and Mackey, above n. 9, 316–317.

¹⁰ See also J. Ronald Engel and Klaus Bosselmann, 'Introduction: History and Key Features of the Earth Charter' in Klaus Bosselmann and J. Ronald Engel (eds), *The Earth Charter: A Framework for Global Governance* (KIT Publishing, 2010) 1–12.

This process is closely associated with the development of Western ‘civilization’ – and not just in its ugly manifestations of colonialism, imperialism and capitalism. The Enlightenment is part and parcel of this process; not that any of its achievements such as individual freedom, human rights and democracy, is inherently flawed. Today, however, we have to concede that these are more ideals than experienced realities. The instrumentalization of people has never stopped and now seems to affect everyone outside the tent (of the rich). Likewise, the instrumentalization of nature seems unbroken, reaching ever-new heights of altering the natural conditions of life (‘Anthropocene’).

None of the above is the Earth Charter’s ‘fault’; but this does not mean that we should exempt it – and ourselves, for that matter – from criticism and self-reflection. For example, how can the Earth Charter movement stay unfazed by the complete failure of states to control global economic forces? We care, of course; but does this not also require a rethink of motives, contents and future direction? Engel has important things to say here.¹¹ Crucially, the Earth Charter movement must see itself as an integral part of global civil society and act accordingly. This may involve closer cooperation with human rights movements (women, children, refugees, workers/unemployed/poor), indigenous movements, the rights of nature movement, peace movements and democracy movements (‘the 99 per cent’), in this way taking a more political, strategic approach. It may also involve drafting new documents – for example, up-to-date commentary on the Earth Charter text or joint declarations of global civil society. In a general sense, the Earth Charter has yet to prove its leading role for ongoing debates on improving the living conditions of people and the integrity of planetary systems.

This chapter assumes the desirability of a world constitutional order. The Earth Charter plays a central role here, as it provides a tool for measuring success and failures as mentioned, but can also be seen as a model constitution, as will be shown. Consequently, the proponents of the Earth Charter should perceive themselves as at the vanguard of a global movement aiming for a world constitutional order.

We will first discuss the current state of international law to look for signs of coherence and direction. If there is a sufficient degree of coherence, as visible in treaties, principles and concepts, then it may be possible to perceive inter-

¹¹ For example, J. Ronald Engel, ‘Can the Earth Charter be Renewed? The Covenantal Promise of the Earth Charter movement’, in Laura Westra, Klaus Bosselmann, Janice Gray and Kathryn Gwiazdon (eds), *Ecological Integrity, Law and Governance* (Edward Elgar, 2018); J. Ronald Engel, ‘Summons to a New Axial Age: The Promise, Limits and Future of the Earth Charter’ in Laura Westra and Mirian Vilela (eds), *The Earth Charter, Ecological Integrity, and Social Movements*, (Routledge, 2014) xv–xxx.

national law as an emerging constitutional framework. The Earth Charter will then be of great importance, as it intentionally sets out existing legal principles and concepts, as well as new ethical values and principles.

3. THE 'GREENING' OF INTERNATIONAL LAW

The Earth Charter perceives Earth as an indivisible whole¹² and derives any environmental responsibilities of governments, business and civil society from there.¹³ In this way, it takes an Earth-centred perspective. By contrast, international law takes a state-centred perspective. Any environmental responsibilities derive from agreements negotiated by, and for, states. Accordingly, Earth does not feature as a whole, but rather as an assembly of environmental phenomena (eg, 'climate change', 'biodiversity loss', 'desertification', 'fisheries'). Furthermore, environmental problems are addressed only as challenges to human development. The approach of international law is therefore reductionist in two respects: it is fragmented and anthropocentric.¹⁴ The system of international environmental treaties is hampered by fragmentation, conflicting purposes and the lack of an overall objective.¹⁵

Despite these shortcomings, there are signs of greater consistency and coherence. According to Andrew Long, international environmental law has developed a certain level of coherence through incorporation of unifying principles in nearly every major treaty.¹⁶ Kiss and Shelton also spoke of a certain harmonization of international environmental law, due to the horizontal expansion of norms, achieved through their inclusion in different legal instruments.¹⁷

When a new environmental agreement is adopted, it typically builds upon a number of existing agreements by way of recalling or reaffirming them.

¹² For example, the Preamble states: 'Earth, our home, is alive with a unique community of life.'

¹³ For example, 'Respect Earth and life in all its diversity' (I.1.) and 'Protect and restore the integrity of Earth's ecological systems' (II.5.).

¹⁴ For example, Klaus Bosselmann, 'Losing the Forest for the Trees: Environmental Reductionism in the Law', (2010) 2(8) *Sustainability*, 2424–48. Today, this observation is virtually undisputed among scholars of international environmental law and seems to be taken for granted by the main subjects of international law – that is, states and inter-governmental organizations.

¹⁵ Rakhyun Kim and Klaus Bosselmann, 'International Environmental Law in the Anthropocene: Towards a Purposive System of Multilateral Environmental Agreements', (2013) (2), *Transnational Environmental Law*, 285–309.

¹⁶ Andrew Long, 'Developing Linkages to Preserve Biodiversity' (2010) 21(1) *Yearbook of International Environmental Law*, 41–80.

¹⁷ Alexandre Kiss and Dinah Shelton, *International Environmental Law* 2nd ed, (Transnational Publishers, 2000).

In this way, a network of international agreements is created. International environmental law is, in fact, a closely connected and deeply intertwined field of law.¹⁸ This structural cohesion could be considered a sign of the maturation of international environmental law as a purposive system. It also indicates that a unifying core has emerged among diverse legally binding and non-binding agreements.

A converging point for divergent objectives of environmental agreements has been the notion of environment protection for sustainable development. All treaties or soft law agreements – whether they are about combating desertification, regulating hazardous wastes or controlling fisheries – aim to protect sections of the global environment from human impact. Although the notion of sustainable development has entered treaty texts since the late 1980s,¹⁹ it is typically referenced as a higher ideal that should be promoted by meeting the immediate object and purpose of each agreement. For example, the objective of the 1992 UN Framework Convention on Climate Change is ‘to achieve... stabilization of greenhouse gas concentrations in the atmosphere at a level that would prevent dangerous anthropogenic interference with the climate system’²⁰ – that is, the protection of the climate system. The notion of sustainable development appears in the text as an eventual goal.²¹

The UN Sustainable Development Goals (SDGs), adopted in 2015, are another step of international law and governance seeking greater coherence and an overall purpose. However, the 17 SDGs are not mutually linked to each other. They are not guided by a definition of ‘sustainable development’ and are not legally binding.²²

As has been shown elsewhere, the conceptual core of sustainable development is ecological sustainability, defined as the integrity of Earth’s ecological systems.²³

The notion of ecological integrity has been used as a key concept in a wide range of international environmental agreements. The first treaty to include the notion was the Convention on the Conservation of Antarctic Marine Living Resources, adopted in 1980, which recognized in its preamble ‘the importance of safeguarding the environment and protecting the integrity of the ecosystem

¹⁸ Long, above n. 17.

¹⁹ Christopher Weeramantry, *Universalising International Law*, (Martinus Nijhoff Publishers, 2004).

²⁰ United Nations Framework Convention on Climate Change, New York, 9 May 1992, in force 21 March 1994, Article 2.

²¹ Ibid.

²² Klaus Bosselmann, *The Principle of Sustainability*, 2nd ed, (Routledge, 2017) 37–40.

²³ Ibid 42–46.

of the seas surrounding Antarctica'.²⁴ Since then, more than two dozen soft or hard law agreements have been adopted with some reference to the integrity of ecosystems in their preamble or the operative part.

Significantly, most of the key international environmental instruments – including the World Charter for Nature,²⁵ the Rio Declaration on Environment and Development,²⁶ Agenda 21,²⁷ the Draft International Covenant on Environment and Development,²⁸ the Earth Charter, the 2002 Plan of Implementation of the World Summit on Sustainable Development,²⁹ the 2012 Rio+20 Outcome Document *The Future We Want*³⁰ and the 2015 Paris Climate Agreement – contain the notion of ecological integrity in their cores.

More recently, the 2016 International Union for the Conservation of Nature (IUCN) World Declaration on the Environmental Rule of Law³¹ stresses 'the fundamental importance of ecological integrity' and defines the 'environmental rule of law' as 'the legal framework for promoting environmental ethics and achieving environmental justice, global ecological integrity and a sustainable future for all'.³² Principle 4 ('Ecological Sustainability and Resilience') of the World Declaration states: 'Legal and other measures shall be taken to protect and restore ecosystem integrity and to sustain and enhance the resilience of social-ecological systems.'

In a similar vein, the 2017 Global Pact for the Environment describes the 'balance and integrity of the Earth's ecosystem' as a prerequisite for 'sus-

²⁴ Convention on the Conservation of Antarctic Marine Living Resources, Canberra, 20 May 1980, in force 7 April 1982, at Preamble.

²⁵ World Charter for Nature, UN General Assembly (UNGA) Resolution A/RES/37/7, 28 October 1982.

²⁶ Rio Declaration on Environment and Development, found in Report of the UN Conference on Environment and Development, UN Doc A/CONF 151/26/Rev 1 (Vol I), 14 June 1992, Annex.

²⁷ Agenda 21: Programme of Action for Sustainable Development, UN Doc A/CONF 51/26, 14 June 1992.

²⁸ Draft International Covenant on Environment and Development, 5th edition (International Union for Conservation of Nature, 2015), Article 1.

²⁹ Report of the World Summit on Sustainable Development, Plan of Implementation of the World Summit on Sustainable Development, UN Doc A/CONF 199/20, 4 September 2002.

³⁰ *The Future We Want*, UNGA Resolution A/RES/66/288, 11 September 2012, Annex.

³¹ IUCN World Declaration on the Environmental Rule of Law, adopted at the IUCN World Congress on Environmental Law, June 2016, Rio de Janeiro (IUCN World Commission on Environmental Law 2017), www.iucn.org/sites/dev/files/content/documents/world_declaration_on_the_environmental_rule_of_law_final_2017-3-17.pdf.

³² Preamble.

tainable development that allows each generation to satisfy its needs without compromising the capability of future generations to meet theirs'.³³ This description resembles the Brundtland Report, which provided for more than just a general definition of 'sustainable development'. Fundamentally, development can only ever be 'sustainable' if it respects the 'integrity of the natural system' as the basic condition for 'the survival of life on Earth'.³⁴

Finally, the 1992 Rio Declaration, which is arguably the most authoritative text in international environmental law, states in the preamble that the UN Conference on Environment and Development worked towards 'international agreements which respect the interests of all and protect the integrity of the global environmental and developmental system'.³⁵ Furthermore, one of its main principles obligates states to 'cooperate in a spirit of global partnership to conserve, protect and restore the health and integrity of the Earth's ecosystem'.³⁶ This was in the spirit of the Brundtland Report and the World Charter for Nature of 1982, which firmly established the integrity of ecosystems or species as a non-negotiable bottom line when achieving 'optimum sustainable productivity' of natural resources.³⁷

Applying the usual standards for the recognition of concepts as international law, we can say that the repeated and consistent references to ecological integrity amount to an emerging fundamental goal or '*grundnorm*' of international environmental law.³⁸ But even independently of any legal status under international or domestic law, the *grundnorm* quality of ecological integrity should

³³ Preamble, Draft Global Pact for the Environment, in: *Le Club des Juristes, Toward a Global Pact for the Environment*, White Paper September 2017, Appendix; www.leclubdesjuristes.com/wp-content/uploads/2017/05/CDJ_Pacte-mondial-pour-lenvironnement_Livre-blanc_UK_web.pdf.

³⁴ Report of the World Commission on Environment and Development (1987), *Our Common Future*, Part I.1.A.I: 'Nature is bountiful, but it is also fragile and finely balanced. There are thresholds that cannot be crossed without endangering the basic integrity of the system. Today we are close to many of these thresholds; we must be ever mindful of the risk of endangering the survival of life on Earth.'

³⁵ Rio Declaration on Environment and Development, found in Report of the UN Conference on Environment and Development, UN Doc A/CONF 151/26/Rev 1 (Vol I), 14 June 1992, Annex, at Preamble.

³⁶ Ibid, Article 7.

³⁷ World Charter for Nature, UNGA Resolution A/RES/37/7, 28 October 1982, Principle 4.

³⁸ Rakhyn Kim and Klaus Bosselmann, 'Towards a Purposive System of Multilateral Environmental Agreements', (2013) 2 *Transnational Environmental Law* 285–309; Rakhyn Kim and Klaus Bosselmann, 'Operationalizing Sustainable Development: Ecological Integrity as a *Grundnorm* in International Law' (2015) 24 (2) *Review of European Community and International Environmental Law*, 194–208.

be without dispute. Surely, no one would doubt the fundamental importance of keeping the Earth's life-supporting systems intact.

In sum, the 'greening' of international law can be described as a process of ongoing commitments to preserving the integrity of Earth's ecological systems. The fact that this commitment has not been acted upon by states is irrelevant for the question of its legal quality. Ecological integrity has grown into a fundamental goal or *grundnorm* of constitutional quality. International law at large has developed a degree of coherence that allows its characterisation as a form of global constitutionalism.³⁹ Another form of global constitutionalism, which has complemented international law development over the last 25 years, is the 'greening' of national constitutions, in the sense of incrementally acknowledging environmental rights and environmental duties.⁴⁰ The dual development of national and international environmental constitutionalism⁴¹ allows us to speak of a global trend towards a world constitutional order or global constitution – at least in a rudimentary form.

4. LEGITIMACY OF A GLOBAL CONSTITUTION

Considering the actual feasibility and practicalities of a global constitution reveals numerous issues to be resolved. In particular, problems of legitimacy are apparent. While the drafting of a global constitution as such is still idealistic, the discourse on global constitutionalism has generated many ideas around a constitution-type global document. The Earth Charter is arguably the best example of a constitution-type document. Can we legitimately speak of the Earth Charter as a draft global constitution?

Some commentators have expressed concern that the growing interest in global constitutional law may undermine existing domestic constitutions.⁴² Fears include that supranational law may circumvent the domestic constitutional law-making structure – for example, in the way that international customary law is argued to have a direct effect in US courts; or that it may change the dynamics of the domestic law-making process, as where the World Trade Organization Agreement requires national implementation of rules formulated on the international plane. It may also affect enforcement procedures, by

³⁹ See reference, above n. 3.

⁴⁰ Bosselmann, above n. 23, 129–166.

⁴¹ Ibid 166–175. Klaus Bosselmann, 'Global Environmental Constitutionalism: Mapping the Terrain' (2015) 21(2) *Widener Law Review*, 171–185.

⁴² See, for example, Ernest A. Young, 'The Trouble with Global Constitutionalism' (2003) 38 *Texas International Law Journal*, 527–545.

allowing circumvention of norms of prosecutorial accountability and domestic procedural rights of criminal defendants by international courts.⁴³

Ernest Young is therefore wary that domestic law has checks and balances that ensure its legitimacy; and those features are somewhat different from the checks and balances that legitimize international law. Therefore, aspects of international law can conflict with domestic law. Indeed, it is generally agreed that when using the concept of ‘constitutionalism’ in the international sphere, as opposed to the domestic sphere, one cannot simply transfer the features associated with domestic constitutionalism to an international platform; the factors that make domestic constitutionalism legitimate become irrelevant on an international scale. Thus, in order to resolve the problems claimed by Young, scholars such as Anne Peters, Thomas Cottier and Matthias Kumm⁴⁴ suggest a new ground of legitimacy for global constitutional law that could rectify the clash of international and domestic constitutional law.

The legitimacy of traditional international law is based on the will and consent of sovereign states. That is because, since the Treaty of Westphalia in 1648, international law has been largely framed around the rights and duties of individual sovereign states. Because it is a mostly horizontal system of inter-state agreements, state consensus is all that is needed to make an agreement valid. Such a method cannot work in a vertical system. In a vertical system, there is a hierarchy of community interests and values that sit above the individual interests of states. The purpose of a discourse on a global constitution is to protect those higher community interests and values. To that end, state consensus cannot, or cannot alone, be a legitimating factor of a global constitution. Brun-Otto Bryde explains this point with reference to human rights, saying that protection of human rights in international law has meaning only if it is recognized as a system of obligations of states owed to an authority

⁴³ Ibid 529. For further discussions on the effect of constitutionalism on state relationships with international law, see Andre Nollkaemper, ‘Constitutionalization and the Unity of the Law of International Responsibility’ (2009) 16 *Indiana Journal of Global Legal Studies*, 535–563; and Janne Nijman and Andre Nollkaemper, ‘Beyond the Divide’ in Janne Nijman and Andre Nollkaemper (eds), *New Perspectives on the Divide Between National and International Law* (Oxford University Press, 2007) 341–360. Further Jens Steffek, ‘Sources of Legitimacy Beyond the State: A View from International Relations’ in Christian Joerges, Inger-Johanne Sand and Gunther Teubner (eds), *Transnational Governance and Constitutionalism* (Hart Publishing, 2004), 81–101.

⁴⁴ Matthias Kumm, ‘The Cosmopolitan Turn in Constitutionalism: On the Relationship Between Constitutionalism In and Beyond the State’ in Jeffery L Dunoff and Joel P Trachtman (eds), *Ruling the World?* (Cambridge University Press, 2009) 258–324.

different from states themselves.⁴⁵ Similarly, with regard to the environment, protection requires the interests of states to be subordinated to the interest of mankind as a whole.⁴⁶

The constitutional mechanisms of *ius cogens* and *erga omnes* have already come into play to replace state consensus. *Ius cogens* signifies a norm that is considered of such importance that states cannot disregard it – whether they are in a treaty regarding the norm or not. For example, many human rights are *ius cogens*; therefore, any violation of a human right is a crime by a state. Obligations *erga omnes* complement *ius cogens* by creating obligations on all states to protect against and punish crimes which violate *ius cogens*. Some say that since these two devices are generally recognized in international law, the constitutionalization of international law is already developing. These mechanisms signify a value system that places state interests subordinate to them. The two legitimize international law, providing specific rules for all states to abide by.

It is generally agreed that democracy forms the fairest basis for political decision making, and thus ensuring a democratically based international law system legitimizes the system. Virtually all theories of democracy require that members of a political community decide for themselves the contents of the rules that govern their collective life.⁴⁷ Current international law is often criticized for its democracy deficit.⁴⁸ Bryde suggests that all peoples must be involved in the international law-making process in order to construct a system that centres on the common interests of mankind. These common interests are not represented when parochial state governments monopolize international decision making. Thus, for democracy to be applied on the international plane, transnational common interests must be voiced, disconnected from state voices.⁴⁹ Andre Follesdal agrees that the basic global structure of international law should be democratic. He references arguments around the democracy debate of the European Union to make his point. Delbrück suggests

⁴⁵ Brun-Otto Bryde, 'International Democratic Constitutionalism' in Ronald St John Macdonald and Douglas M Johnston (eds), *Towards World Constitutionalism* (Brill Academic Publishers, 2005)107.

⁴⁶ Ibid.

⁴⁷ Jeffrey Dunoff and Joel Trachtman, 'A Functional Approach to Global Constitutionalism' in Jeffrey Dunoff and Joel Trachtman, *Ruling the World? Constitutionalism, International Law and Global Governance*, (Cambridge University Press, 2009) 3–36, at 25.

⁴⁸ Andreas Paulus, 'The International Legal System as a Constitution' in *Ruling the World?*, above n. 48, 69–112, at 94.

⁴⁹ Bryde, above n. 46, at 117.

that democracy is a key factor of legitimacy, as it is based on transparency and accountability.⁵⁰

An international constitution may have enhanced legitimacy by having a governing body. Bryde suggests that the European Union is a suitable role model,⁵¹ while others argue that such an organization would be less desirable than multi-layered governance.⁵² Importantly, Anne Peters distinguishes a desirable global system of governance from undesirable moves towards global government.⁵³

There are numerous ways in which legitimacy may be given to a global constitution.⁵⁴ If a set of standards is agreed upon for international law, as a global constitution aspires to do, then domestic constitutions will know very clearly the parameters of the international constitution and the interplay it has on domestic constitutional law.

5. THE CRITICAL ROLE OF CIVIL SOCIETY

Notwithstanding the many considerations that may speak in favour or against a global constitution from a legal point of view, there have always been strong voices within civil society. In fact, the basic values of any constitutionalism have been shaped and promoted by civil society. A prime example of these efforts is the history of the 1948 Universal Declaration of Human Rights (UDHR).

The morals and values of human rights can be traced through the history of many religious beliefs and cultures. In Europe, the philosophers of the Enlightenment developed theories of natural law that paved the way for the modern idea of fundamental human rights. The English Bill of Rights (1689), the American Declaration of Independence (1776) and the French Declaration of the Rights of Man and of the Citizens (1789) reflected this idea and inspired constitutionalism of the nineteenth and twentieth centuries.

Following the breakdown of human rights protection in Nazi Germany, the UN Charter 'reaffirmed faith in fundamental human rights, and dignity and

⁵⁰ Jost Delbrück, 'Exercising Public Authority Beyond the State: Transnational Democracy and/or Alternative Legitimation Strategies' (2003) 10 *Indiana Journal of Global Studies*, 29, 31.

⁵¹ Bryde, above n. 46, at 111.

⁵² Klaus Bosselmann, 'Towards Multilevel Governance for Sustainability: Trends and Challenges' (2010) *Europe-New Zealand Research Series Paper*, 1–72.

⁵³ Anne Peters, 'Compensatory Constitutionalism', (2006) 16(3) *Leiden Journal of International Law* 579–610, 610.

⁵⁴ See also Daniel Bodansky, 'The Legitimacy of International Governance: A Coming Challenge for International Environmental Law?', (1999) 93 *American Journal of International Law*, 596–624, 597.

worth of the human person' and committed all member states to promote 'universal respect for, and observance of, human rights and fundamental freedoms for all without distinction as to race, sex, language or religion'.⁵⁵ The very fact, however, that these freedoms had just been violated by a presumed 'civilized' European nation required more than mere reaffirmation. A more specific declaration of specific rights was needed; and this was seen primarily as a task for the international community, not individual states. Under the leadership of Eleanor Roosevelt, this concern of civil society was given strong expression in the UDHR – a soft law document that became inspirational not only for human rights conventions and domestic constitutions, but also for the idea of a global constitution.

During 1948–49 a group of humanists, social scientists, philosophers and lawyers associated with the University of Chicago drafted a preliminary draft of a World Constitution⁵⁶ which was translated into 40 languages. Significantly, the first chapter of this Draft World Constitution is structured as a 'declaration of duties and rights' – not just rights – and contains the following Sub-chapter c:

The four elements of life - earth, water, air, energy - are common property of the human race. The management and use of such portions thereof as are vested in or assigned to particular ownership, private or corporate or national or regional, of definite or indefinite tenure, of individualist or collectivist economy, shall be subordinated in each and all cases to the inherent interest of the common good.

The concern behind this draft was that international social justice cannot be achieved on the basis of existing concepts of property, including the right to use and misuse it, as Elisabeth Mann Borgese points out.⁵⁷ She asserts that the Draft World Constitution established a legal order to protect the Earth and its resources as a common heritage and property of humankind. The Draft World Constitution, also known as the 'Chicago World Constitution', has influenced many pioneers of international environmental law.⁵⁸

For the development towards a possible global constitution, no subject area could be more inspiring than the global environment. People and nations all depend on it and cannot sustain themselves without some collective understanding of the fact that the global environment must be protected and of how this might be achieved. The mentioned Chicago World Constitution and

⁵⁵ United Nations Charter, preamble and article 56.

⁵⁶ www.worldbeyondborders.org/chicagodraft.htm.

⁵⁷ Elisabeth Mann Borgese, *The Beginnings – The IOI Story*, (International Ocean Institute, 1999) 9.

⁵⁸ *Ibid* 9–13.

all other models and ideas for a global constitution have proven to be most powerful when they articulate this common concern, and fate, of humankind.

Arguably, no other document has articulated this concern more strongly and more inclusively than the Earth Charter. It had its origins in the global ethics movement that started with the UN Charter, the founding of the UN Educational, Scientific and Cultural Organization (UNESCO) (1946) and the IUCN (1948), and the Universal Declaration of Human Rights.⁵⁹ With its history and ‘contributions of literally millions of minds around the world’,⁶⁰ the Earth Charter is the most inclusive international document to date to define globally shared values and principles. According to Nick Robinson, ‘the binding principles embodied in the Earth Charter can be and are being applied in courts and are found in virtually all national environmental laws’.⁶¹ Considering further its endorsements by thousands of national and international organizations, including UNESCO and the IUCN, and a number of states, and also its general recognition in international law,⁶² the Earth Charter meets many of the hallmarks of a model global constitution.⁶³

So, quite independently of any prospects towards a world constitutional order, we do have benchmark documents⁶⁴ against which we can measure progress.

6. CONCLUSION

This chapter did not aim to define or review a world constitutional order. That would be impossible, given the novelty and thin base of this emerging field of inquiry.

⁵⁹ Bosselmann and Engel, above n. 11. Martin Holdgate, *The Green Web: A Union for World Conservation*, (Earthscan, 1999) 51.

⁶⁰ Nicholas Robinson, *Foreword* in Bosselmann and Engel, above n. 11, at 8.

⁶¹ *Ibid* 12.

⁶² Klaus Bosselmann and Prue Taylor, ‘The Significance of the Earth Charter in International Law’, in Peter Blaze Corcoran et al (eds), above n. 9, 171–173.

⁶³ Klaus Bosselmann, ‘Outlook: The Earth Charter: A Model Constitution for the World?’ in Bosselmann and Engel, above n. 11, 239–255; Klaus Bosselmann (2009), ‘Earth Charter’, *Max Planck Encyclopaedia of Public International Law*, Oxford: Oxford University Press, 4. On the question of covenantal commitments to future generations, see Konstantin Chatziathanasiou, ‘Constitutions as Chains? On the Intergenerational Challenges of Constitution-Making’, *Intergenerational Justice Review* 1/2017, 32–42.

⁶⁴ Other examples include UNESCO’s Universal Declaration of Human Responsibilities (<http://globolethic.org/Center/unesco.htm>) and the Universal Declaration of Rights of Mother Earth (<http://therightsofnature.org/universal-declaration/>).

We can say, however, that the Earth Charter, with its covenantal qualities, would give us a remedy for our present era of world disorder. The cure for nationalism, racism and fascism is a covenantal commitment to the principles of Earth democracy⁶⁵ as expressed in the Earth Charter. We humans are in this together and have no way of escaping the truth of planetary boundaries. If we are to live on Earth sustainably, then we need to live by the values of humanity and our covenantal promise.

⁶⁵ Klaus Bosselmann, 'Earth Democracy: Institutionalizing Ecological Integrity and Sustainability', in J. Ronald Engel, Laura Westra and Klaus Bosselmann (eds), *Democracy, Ecological Integrity and International Law*, Cambridge Scholars Publishers, 2010) 319–330.